

Statement of Work (SOW)

Compressed Industrial, High-Purity, and Specialty Gases Indefinite Delivery/Indefinite Quantity (IDIQ) Contract

1.0 General

The United States Army Combat Capabilities Development Command, Chemical Biological Center, Environmental Monitoring Laboratory requires the acquisition of compressed industrial, high-purity, and specialty gases at Aberdeen Proving Ground, Maryland and outlying locations within the Continental United States (CONUS), Alaska, and Hawaii. The supplied gases will be used in the operation of analytical laboratory instrumentation in various platforms such as mass spectrometers, gas and liquid chromatographs, flame ionization and prometric detectors, and military-specific monitors. This acquisition will support a skilled technical work force involved with environmental monitoring to detect hazardous materials, chemicals, and warfare agent releases in air and other media.

2.0 Objective

The objective of this contract is to establish an Indefinite Quantity Indefinite (IDIQ) contract for Compressed Industrial Gases and Military Grade Gases in accordance with the specifications of the Gases and locations listed in Table 1 and 2 below.

The total contract ordering period is five (5) years from the effective date of award. The total ordering period is broken into five (5) individual 12-month ordering periods and one (1) six-month extension.

Delivery Period: 60 Months after contract award

Delivery Location and On-Site Government Lead: TBD at the Delivery Order level

3.0 Applicable Documents

The documents listed in this section which relate to the handling of compressed gases and cylinders are applicable to this SOW.

- 3.1 MIL-STD-1411, Inspection and Maintenance of Compressed Gas Cylinders
- 3.2 ISO 9001:2000 Quality Program
- 3.3 29 CFR 1910.101 Compressed Gases (General Requirements)
- 3.4 NFPA 55 Compressed Gases and Cryogenic Fluids

4.0 Scope of Work

4.1 Compressed Industrial, High-Purity, and Specialty Gas List

The contractor shall be responsible for supplying all gases as specified in the Required Gas List and must possess the logistical capability to support all designated delivery locations.

4.1.1 The Contractor shall provide timely delivery of the Government's requested supply of Compressed Industrial Gases and Military Grade Gases to include Gas Handling, Delivery, Rental, Hardware, and Accessories, as outlined in the Table One (1) below to the locations provided in Table 2 as specified by the Government in each delivery order.

Table 1 – Compressed Industrial Gas List

TYPE OF GAS	GRADE	CYLINDER SIZE
Acetylene	Industrial	350 ft3 (Steel)
Air	Ultra Zero	300 ft3 (Steel); 200 ft3 (Steel) Acceptable
Air	Ultra Zero	150 ft3 (Aluminum)
Argon	Industrial	300 ft3 (Steel); 200 ft3 (Steel) Acceptable
Argon, Liquid	Argon Plasma	180 L Dewar; 240 Liter Dewar Acceptable
Argon/CO2 Mix (C25)	Industrial	300 ft3 (Steel); 200 ft3 (Steel) Acceptable
Argon/Helium/CO2 (Tri-Mix)	Industrial	300 ft3 (Steel); 200 ft3 (Steel) Acceptable
Cyanogen Chloride (100 ppm) in Nitrogen	Specialty	150 ft3 (Aluminum); One (1)-Year Shelf Life
1,2-Ethanedithiol (200 ppm) in Nitrogen	Specialty	150 ft3 (Aluminum); Five (5)-Year Shelf Life
Helium	Ultra-High Purity	300 ft3 (Steel); 200 ft3 (Steel) Acceptable
Helium	Ballon	300 ft3 (Steel)
Hydrogen	Ultra-High Purity	300 ft3 (Steel); 200 ft3 (Steel) Acceptable
Hydrogen	Ultra-High Purity	150 ft3 (Aluminum)
Methane (5%) in Argon - P5	High Purity	300 ft3 (Steel); 200 ft3 (Steel) Acceptable
Methane (5%) in Argon - P5	High Purity	80 ft3 (Steel)
Nitrogen	Ultra-High Purity	300 ft3 (Steel); 200 ft3 (Steel) Acceptable
Nitrogen	Ultra-High Purity	150 ft3 (Aluminum)
Nitrogen	Industrial	300 ft3 (Steel); 200 ft3 (Steel) Acceptable
Nitrogen, Liquid	High Purity	Bulk, Liter
Oxygen	Industrial	300 ft3 (Steel); 200 ft3 (Steel) Acceptable

Phosgene (80 ppm) in Nitrogen	Specialty	200 ft3 (Steel); One (1)-Year Shelf Life
Phosgene (80 ppm) in Nitrogen	Specialty	150 ft3 (Aluminum); One (1)-Year Shelf Life
Propane	Fuel	32 lbs.

4.2 Delivery Locations

4.2.1 The Contractor shall provide timely delivery of the Government's requested supply of Compressed Industrial Gases and Military Grade Gases to include Gas Handling, Delivery, Rental, Hardware, and Accessories, as outlined in the Table One (1) above to the locations, but not limited to, as specified by the Government in each delivery order.

4.2.2 The Contractor shall be responsible for providing industrial compressed gases to support operations at Aberdeen Proving Ground (APG), MD and field laboratory support locations. The Contractor shall be responsible for the delivery and pickup of containerized compressed gas cylinders after an order is received from the Contracting Officer's Representative (COR). The Contractor shall also provide a report documenting the cylinders provided/removed for each delivery and pick up.

Table 2 – Delivery Locations

ORGANIZATION	CITY	STATE & ZIP CODE
Chemical Biological Center Main Laboratory	Aberdeen Proving Ground	Maryland 21010
Chemical Incident or Mishap Response and Assistance (CIMRA) HQs	Aberdeen Proving Ground	Maryland 21005
Army Medical Command, Defense Health Agency	Aberdeen Proving Ground	Maryland 21010
Field Laboratory Chanute Air Force Base	Rantoul	Illinois 61866
Field Laboratory Deseret Chemical Depot	Stockton	Utah 84071
Field Laboratory Dover Air Force Base	Dover	Delaware 19902
Field Laboratory Edwards Air Force Base	Edwards	California 93524
Field Laboratory Fort Wainwright	Fairbanks	Alaska 99703
Field Laboratory Holloman Air Force Base	Alamogordo	New Mexico 88330
Field Laboratory	Honolulu	Hawaii 96819

Field Laboratory Naval Air Warfare Center Joint Base McGuire-Dix-Lakehurst	Lakehurst	New Jersey 08733
Field Laboratory Pine Bluff Arsenal	Pine Bluff Arsenal	Arkansas 71602
Field Laboratory Pueblo Chemical Depot	Pueblo	Colorado 81006
Field Laboratory Redstone Arsenal	Huntsville	Alabama 35898
Field Laboratory Schofield Barracks	Honolulu	Hawaii 96857
Field Laboratory Spring Valley Site	Washington	DC 20016
Field Laboratory Yuma Proving Grounds	Wellton	Arizona 85365

4.2.3 Additional field laboratory locations may be designated based on mission requirements. Future locations are typically associated with active and closed military bases, National Guard and Reserve Centers, and Formerly Utilized Defense Sites (FUDS) limited to within the Contiguous United States (CONUS), Alaska, and Hawaii.

5.0. Requirement - Industrial and Specialty Gases

5.1 Supply requirements will be specified by individual delivery orders.

5.2 Current operations may not require the Contractor to supply the entire list of gases at a given time. Orders will consist of various combinations of the gases listed in Table 1, Compressed Industrial Gas List. The Contractor shall identify the delivery time of the gases to assist in developing delivery schedules.

In-Stock Gas Supply	Immediate Delivery; 0-2 days
Back Order Gas Supply	Short Term Delivery Delay; 2+ days to 2 weeks
Custom Order Gas Supply	Long Term Delivery; 2+ weeks to 2 months

5.3 The Contractor will deliver the requested in-stock gases, ready to ship gases within 96 hours (48 hours for an emergency request) after notification.

5.4 The Contractor shall replace any industrial or specialty gas that fails to meet the required specifications for purity, laboratory standards, or content. Said replacement shall be furnished at no cost to the Government and must be completed within 48 hours of the Contractor's receipt of a discrepancy notification. The non-conforming gas must be replaced within 48 hours after the Contractor receives a discrepancy notification. The discrepancy notification will be issued by the Contracting Officer Representative (COR).

The COR will issue the notification within seven (7) days after discovery of the gas discrepancy.

6.0. Requirement - Portable Cylinders and Containers

6.1 All cylinders/containers shall be properly maintained and inspected by the Contractor prior to delivery. The Contractor shall be responsible for maintaining all markings on all cylinders/containers and/or transportation equipment in accordance with Federal, State, and Military regulations. DEVCOM CBC typically retains these portable cylinders for a period of five (5) years, or until they are utilized or otherwise consumed in accordance with their established expiration dates.

6.2 The Contractor shall be responsible for furnishing the portable cylinders and containers required to fulfill the Government's compressed gas needs. The Government agrees to reimburse the Contractor for the rental fees associated with cylinders and Dewars held in its possession. In instances where cylinder loss is determined to be the fault of the Government, the Government shall reimburse the Contractor for the replacement cost.

6.3 Upon notification from COR regarding a specific number of cylinders available for pick-up, the contractor shall collect said cylinders within five (5) days of notification. Rental fees will not be charged to the Government that remain uncollected beyond the five (5) day period or in cases where the Contractor's transportation vehicle lacks the capacity to accommodate the specified number of cylinders for pick-up.

6.4 The Contractor shall replace any externally faulty or inoperable cylinders within 96 hours of being notified by the COR at no cost to the Government.

6.5 The Contractor shall be responsible for ensuring that all delivery personnel hold and maintain a valid Commercial Driver's license (CDL) at the appropriate level of certification required for transporting these types of products.

6.6 The Contractor shall maintain a current copy of all Material Safety Data Sheets (MSDS) for the associated products provided under each delivery order. At the time of delivery, the Contractor shall provide a clear and legible hard copy of the applicable MSDS document to the receiving laboratory. In the event an MSDS is revised, the Contractor is responsible for promptly distributing the most current version to the Main Laboratory, Environmental Office, and each Field Laboratory.

6.7 The Contractor shall not remove or relocate any cylinder or container without receiving prior approval by the COR.

6.8 All Government requests for removal or relocation of cylinders or containers must be submitted in writing to the Contractor by individual cylinder/container location with a copy of the request forwarded to the COR.

7.0. Requirement - Delivery and Cylinder Management

7.1 The following is a list of potential transportation and cylinder management activities:

Description (Gas Cylinder Management Actions, Costs Vary by Location)

- Transport - Delivery, Routine
- Transport - Delivery, Emergency
- Transport - Hazardous Material Handling
- Transport - Common Carrier (Less than 250 Miles)
- Transport - Common Carrier (Greater than 250 Miles)
- Transport - Common Carrier/Cargo (Hawaii and Alaska)
- Rental - Cylinder, Aluminum, Monthly
- Rental - Cylinder, Steel, Monthly
- Rental - Dewar, Monthly
- Replacement - Lost Cylinder, Aluminum
- Replacement - Lost Cylinder, Steel

7.2 The main laboratory has several locations for delivery, storage, and removal of gas cylinders and containers at APG in the vicinity of Building E3330. Corresponding locations for the field site deliveries will be provided to the Contractor for review and approval. The Contractor shall make deliveries directly to the identified buildings and storage areas using Contractor owned equipment and personnel. The Contractor shall remove all empty cylinders/containers from the delivery location and from the facility. The Contractor shall provide a copy of all delivery tickets/manifests to the COR.

7.3 The Government reserves the right to relocate portable cylinders/containers, and Contractor owned equipment located on Government property to facilitate emergency responses or to safeguard either Government or Contractor owned property. The COR shall notify the Contractor within five (5) working days should relocation become necessary.

7.4 Non-emergency (routine) deliveries shall be made Monday through Friday between the hours of 0800 to 1700 (8:00 AM to 5:00 PM) in the laboratory's time zone.

7.5 For deliveries and pickups **on-APG**, the designated point of contact is the Contracting Officer's Representative (COR).

For any deliveries or pickups that occur **off-APG**, a site-specific point of contact will be designated at the time the order is placed.

7.6 Deliveries for routine orders shall be delivered no later than 1700 hours (5:00 PM) on the third business day following placement of the order, unless the customer has authorized a longer delivery time for a specific order.

7.7 Emergency orders shall be delivered to the designated location within 24 hours. The COR will designate the order as an "Emergency Order". Unless otherwise directed by

the COR, emergency deliveries shall also be made during normal working hours of 0800 to 1700 (8:00 AM to 5:00 PM) in the laboratory's time zone.

7.8 The Contractor must maintain the capability to fulfill surge demands, which may be unanticipated and could reach up to one-half greater than normal demand levels. To satisfy these increased needs, the Contractor is permitted to engage subcontractors. Normal ordering and payment processes will apply to all surge orders. Pricing for items furnished during a surge period will remain the same as for non-surge orders with the same delivery requirements.

7.9 The Contractor shall accept returns under the following conditions:

- Products were delivered in error.
- Containers are damaged and may pose unsafe conditions for use.
- Products have been recalled by the manufacturer, regardless of the level of recall.
- Product does not meet the quality standards specified.
- Containers were delivered empty or partially filled.

All discrepancies will be reported to the Contractor by the COR within seven (7) calendar days of delivery.

7.10 The Contractor shall have the capability to track cylinders utilizing automated procedures to ensure that proper cylinder counts are maintained after each delivery and return. A proper cylinder count is necessary to accurately determine stock levels and calculate rental charges.

8.0 Customer Service

8.1 The Contractor shall be available by phone during normal working hours of 0800 to 1700 (8:00 AM to 5:00 PM) in the delivery location time zone to answer questions, facilitate deliveries/pickups, and resolve ordering issues.

8.2 The Contractor shall be proactive in working with the customers to identify potential cost savings, such as transitioning from individual cylinders/containers where usage rates will support bulk purchases and delivery.

9.0 Performance Requirements

The Government requires that industrial compressed gases be supplied in an accurate and timely manner to ensure proper operation of the instrumentation. Delays and errors can have a devastating effect on performing sample monitoring with the potential to elevate human health and environmental risk.

10.0 Deliverables

The Government requires the Contractor to submit reports documenting events and occurrences during the contractual period of performance. The Contractor can provide all the Material Safety Data Sheets (MSDS) with a single submission, electronically, since the majority of MSDS are readily available from the Web. Revised MSDS should be provided as available.

11.0 Government Furnished Items

Locations for the use and temporary storage of compressed gas cylinders and containers consisting of storage closets, equipment sheds, fixed and mobile laboratory floor, cabinet, and ventilation hood spaces.

12.0 Security Conditions

All Contractor and Subcontractor employees with an area of performance within an Army controlled installation, facility, and area shall comply with applicable installation, facility, and area commander installation/facility access and local security policies and procedures which shall be provided by Government security representative or COR. At certain facilities identified by the COR, the Contractor must be granted site access approval prior to the delivery or pickup. The Contractor shall notify the COR in advance and submit the following information to the controlled-facility security manager for each Contractor person requiring facility access:

- Employee's full name
- Company name
- Date of birth
- Social security number
- Dates and times of visit

The information is required prior to the person's first visit and is valid for approximately one (1) year. At the front gate, the Contractor will obtain a visitor's pass after presenting proper identification documents. Delivery personnel may be subject to vehicle inspection prior to entry. A Contractor escort will be provided as needed. The Force Protection Condition (FPCON) dictates potential changes to entry requirements.

13.0 Safety and Health

13.1 Compliance. The Contractor shall comply with all Federal, State, Military, and local laws and regulations concerning the environmental, occupational safety and health, and hazardous material. In case of conflict among these laws and regulations, the most stringent law or regulation shall apply. The Contractor shall ensure employees have all required training and certifications related to Occupational Safety and Health Administration (OSHA) requirements.

13.2 Hazardous Materials. The Contractor will provide personnel responsible for the handling of the hazardous materials and the respective Material Safety Data Sheet

(MSDS). This responsibility includes proper training in the handling and disposal of the hazardous materials.

13.3 Control of Contractor Personnel. Delivery access to certain locations may require the Contractor to provide a list of employees that will be accessing the laboratory and field sites. The COR will require the Contractor to provide an employee list containing full names, social security numbers, job titles, and proof of citizenship.

13.4 Government Observers. Government personnel, such as Contracting Officer (KO), COR, or Facilities staff are authorized to observe Contractor activities. Efforts will be made to minimize the degree of disturbance on Contractor performance.

14.0 Hours of Operation

14.1 The Contractor's hours of access are Monday through Friday, 0800 to 1700 hours, excluding holidays and installation closure. The contractor shall be required to make cylinder deliveries and pickups during these hours.

14.2 Installation Closures. Installation closures will be designated by the APG Installation Commander and by the local commander for the field locations. Closures will be associated with inclement weather/dangerous conditions and/or National Security. The Contractor shall not be allowed access during designated closures, unless the compressed gas delivery/removal is deemed to be essential and authorized by CBC leadership depending upon urgency of gas required to complete analysis to determine protectiveness of human health. The contractor shall call the Post Operation telephone (410-278-SNOW) to get APG operation status and report to work accordingly. In addition, the local radio stations will announce any such delays or closures.

14.3 Inclement Weather. When the Government agency is closed by the Installation Commander because of inclement weather conditions and/or dangerous conditions, notification of the closure will be broadcast over local radio and television stations, or APG public website at <http://www.apg.army.mil/>.

14.4 Holidays. A list of Government agency observed holidays and/or closed days in conjunction with holidays will be published at the beginning of each calendar year. The Contractor will not be allowed access to Government property on a designated holiday unless deemed essential and authorized by CBC Leadership. The Contractor is advised that access to the Government installation may be restricted on these holidays:

New Year's Day
Martin Luther King Jr.'s Birthday
President's Day
Memorial Day
Juneteenth
Independence Day

Labor Day
Columbus Day
Veteran's Day
Thanksgiving Day
Christmas Day

15.0 Antiterrorism Operations Security (AT OPSEC):

FOREIGN NATIONAL USE: The Contractor shall not use foreign nationals on this contract unless approved by the Procuring Contracting Officer with DEVCOM Chemical Biological Center Security Office concurrence. Any foreign nationals must be approved prior to initiating work under this award. The following information is required when requesting approval for foreign national support: (1) full name, (2) date of birth, (3) place of birth, (4) citizenship, (5) registration number, (6) port of entry, (7) description of position in which employee will be utilized, (8) photo-copy of the work visa, (9) abbreviated Curriculum Vitae, (10) all issued passports, and (11) a sole source justification (why the foreign national is being used instead of a United States person). These documents will be submitted to the DEVCOM Chemical Biological Center Security Office for approval. Previously approved foreign nationals must be re-approved if the nature of their work under this contract differs from that performed under the prior year's contract.

Access and general protection/security policy and procedures. This standard language is for contractor employees with an area of performance within an Army controlled installation, facility, or area. Contractor and all associated Subcontractors employees shall provide all information required for background checks to meet installation access requirements to be accomplished by installation Provost Marshal Office, Director of Emergency Services or Security Office. Contractor workforce must comply with all personal identity verification requirements (FAR clause 52.204-9, Personal Identity Verification of Contractor Personnel) as directed by DoD, HQDA and/or local policy. In addition to the changes otherwise authorized by the changes clause of this contract, should the Force Protection Condition (FPCON) at any individual facility or installation change, the Government may require changes in contractor security matters or processes.

For contractors that do not require a CAC but require access to a DoD facility or installation. Contractor and all associated subcontractor employees shall comply with adjudication standards and processes using the National Crime Information Center Interstate Identification Index (NCIC- III) and Terrorist Screening Database (TSDB) (Army Directive 2014-05/AR 190-13), applicable installation, facility and area commander installation/ facility access and local security policies and procedures (provided by government representative), or, at OCONUS locations, in accordance with status of forces agreements and other theater regulations.

16.0 Government Point of Contact

Peter Rissell, Contracting Officer Representative
Phone: (410) 417-0159 or (443) 616-5785
Email: peter.j.rissell.civ@army.mil

On-Site Government Lead for field support locations to be determined at the delivery order level.